

SUPREME COURT OF THE STATE OF NEW YORK  
NEW YORK COUNTY

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JOHN GRANT,

Plaintiff,

INDEX NO.

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, P.O. YARIS GONZALEZ,  
and P.O.s JOHN DOES #1-5 (*said names fictitious as  
the true names are presently unknown*), Individually  
and in their Official Capacities,

Defendants.

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Plaintiff, by his attorneys, MYERS SINGER & GALIARDO, LLP, as and for his Verified  
Complaint, respectfully alleges upon information and belief:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees for the wrongful acts of Defendants THE CITY OF NEW YORK, P.O. YARIS GONZALEZ and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), as Officers of the New York City Police Department, all acting under color of state law and pursuant to their authority, for their actions including but not limited to the false arrest, malicious prosecution, assault and use of excessive force against Plaintiff in violation of Plaintiffs' rights as said rights are secured by statutes and the Constitution of the State of New York and the Constitution of the United States, specifically 42 U.S.C. §§ 1983 and 1988.

**THE PARTIES**

2. Plaintiff JOHN GRANT, at all times herein mentioned was and still is a resident of the County, City and the State of New York.

3. At all times relevant hereto, defendant THE CITY OF NEW YORK (hereinafter, "CITY") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named Defendants.

4. At all times mentioned herein, Defendant CITY operated, maintained, managed, and controlled the Police Department of the City of New York (hereinafter "NYPD"), and was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, lieutenants and/or employees of the NYPD.

5. At all times relevant to this action, defendants P.O. YARIS GONZALEZ (hereinafter, "P.O. GONZALEZ") and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), are and were police officers, employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. The police officers are being sued in both their individual and official capacities.

6. At all times relevant hereto and in all their actions described herein, said Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.

7. That the CITY was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, and/or employees of the NYPD.

**STATEMENT OF FACTS**

8. On July 26, 2016, at approximately 4:15 p.m., in or about the area of East 122nd Street and Third Avenue, New York, New York, Plaintiff JOHN GRANT, a 72 year-old retiree was sitting outside speaking with friends.

9. It was a nice day, and there were about 20 people in the area, milling about and socializing.

10. Upon information and belief, some of the individuals in the area were consuming beer.

11. In or about that time, the defendant police officers arrived at the location.

12. As Plaintiff was seated on a bench, P.O. GONZALEZ approached Plaintiff and asked for his identification, which he provided.

13. After taking several minutes to “run” his identification, the police officer came back to Plaintiff and informed him that he had an outstanding unpaid summons. Plaintiff informed P.O. GONZALEZ that she was mistaken and that the summons had been paid.

14. Nevertheless, P.O. GONZALEZ informed Plaintiff that he would be arrested.

15. When Plaintiff began to verbally object, two police officers approached him from behind and placed him in a choke hold.

16. Without further provocation, P.O. GONZALEZ pepper sprayed the plaintiff directly into the eyes.

17. Plaintiff, who had recently had cataract surgery, was in terrible pain.

18. Thereafter, the police falsely arrested Plaintiff and charged him with, *inter alia*, Obstruction of Government Administration (PL 195.05) and Resisting Arrest (PL 205.30).



19. In addition, members of NYPD filed and/or provided false and misleading reports to the District Attorney's Office regarding the incident to support an unfounded prosecution, including the false claim that Plaintiff told the officer he was going to "knock you the fuck out".

20. Thereafter, the police falsely arrested Plaintiff and charged him with, *inter alia*, Obstruction of Government Administration (PL 195.05) and Resisting Arrest (PL 205.30).

21. Plaintiff was transported to the precinct, where he continued to complain of severe eye pain.

22. Plaintiff was then transported in leg irons and handcuffs to Harlem Hospital where he was treated for his injuries, including an irrigation of his eyes.

23. Later that evening, on or about July 26, 2016, Plaintiff was transported to New York County criminal court and arraigned under Docket Number 2016NY045378.

24. Despite the false claim that there was an outstanding warrant for an unpaid summons, no such warrant existed. Plaintiff was released on his own recognizance.

25. Plaintiff appeared twice to fight the false charges against him. Notwithstanding the Defendants' unlawful conduct, all charges against Plaintiff were conditionally dismissed (ACD).

26. That Defendant CITY, its agents, servants and/or employees, was negligent in failing to properly and adequately hire, train and instruct its police officers in the use of force during their daily activities, including conducting investigations and making arrests.

27. Plaintiff was unlawfully and forcibly arrested, subjected to excessive force and was injured due to the negligence, carelessness, recklessness and/or intentional conduct of Defendant CITY, by its agents, servants and/or employees, and more particularly, members of the NYPD.

28. As a result of the incident, Plaintiff spent time in custody and suffered injury.

29. On August 30, 2016, Plaintiff JOHN GRANT duly served a Notice of Claim upon the City of New York in the manner required by law.

30. That at least 30 days have elapsed since the service of notice of said demand and adjustment or payment thereof has been neglected and/or refused.

31. That a hearing pursuant to General Municipal Law Section 50-H was held on November 16, 2016.

32. That this action is being commenced within one year and ninety (90) days after the occurrence herein.

**AS AND FOR A FIRST CAUSE OF ACTION:**  
**FALSE ARREST & IMPRISONMENT**

33. That the Plaintiff was unlawfully detained, arrested and imprisoned by agents, servants and/or employees of Defendant CITY, including Defendants P.O. GONZALEZ and JOHN DOES #1-5, police officers who were acting within the scope of their employment.

34. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

35. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

36. At the time of his unlawful arrest and imprisonment, Plaintiff had not committed nor attempted to commit any illegal act.

37. At the time of Plaintiff's unlawful arrest and imprisonment, the Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and not supported by probable cause.

38. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal allegations against Plaintiff.

39. The aforesaid incident, false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear and humiliation, loss of freedom, legal expenses and damage to her reputation.

40. By reason of the foregoing, the Defendants are liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION:**  
**ASSAULT and FAILURE TO INTERVENE**

41. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "40" of the complaint as if fully set forth herein.

42. That during the aforementioned arrest, Defendants, specifically P.O. GONZALEZ, did intentionally and maliciously assault and harm Plaintiff without cause, provocation or justification.

43. The aforesaid assault was carried out solely to inflict physical and mental harm upon Plaintiff.



44. At all times mentioned herein, Defendants P.O. GONZALEZ and JOHN DOES #1-5, and other agents, servants and/or employees of Defendant CITY, were acting within the scope of their employment, under the color of authority, and in furtherance of their employer's interest.

45. That during the aforementioned assault and battery of the Plaintiff, other Defendants did witness said assault of Plaintiff and failed to intervene or otherwise attempt to stop the assault and instead stood by with complicity.

46. As a result, Plaintiff was injured, became sick, sore, lame and disabled, and was caused to suffer and still suffers permanent injuries, including eye and vision injury, and will continue to suffer pain and discomfort; and was caused to obtain continued medical care in an attempt to treat the aforesaid injuries.

47. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION:**  
**EXCESSIVE FORCE**

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 47 with the same force and effect as if fully set forth herein.

49. The degree of force used by Defendants in effecting the arrest of Plaintiff was excessive, unreasonable and unwarranted.

50. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable and unprovoked.

51. As a result of the excessive force and brutality, Plaintiff sustained injuries, substantial pain, bruising and swelling about his body, requiring medical treatment.

52. All of the aforementioned acts of Defendants constituted excessive force under the laws of the State of New York and they are liable for said damage.

53. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION:**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

54. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "53" of the complaint as if fully set forth herein.

55. The aforementioned actions of Defendants were outrageous, malicious, shocking and exceeded reasonable bounds of decency tolerated by the public community.

56. Defendants acted with the intent to cause Plaintiff emotional distress and/or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

57. Defendants acted with disregard of the consequences of their actions. As a result, Plaintiff was caused to suffer the intentional infliction of emotional distress.

58. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.



**AS AND FOR A FIFTH CAUSE OF ACTION:**  
**DEPRIVATION OF CIVIL RIGHTS**

59. The Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "58" of the complaint as if fully set forth herein.

60. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

61. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

62. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

63. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

64. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

65. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

66. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION:**  
**CONSPIRACY TO VIOLATE CIVIL RIGHTS**

67. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "66" of the complaint as if fully set forth herein.

68. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to falsely charge Plaintiff with crimes and falsely provide misleading reports to the District Attorney, as described above, in violation State and United States Constitutions and 42 U.S.C. § 1985, for which the Defendants are individually liable.

69. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**NEGLIGENT SUPERVISION, HIRING and RETENTION**

70. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "69" of the complaint as if fully set forth herein.

71. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently trained or failed to train its agents, servants, or employees, including Defendants P.O. GONZALEZ and JOHN DOES #1-5.

72. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, including Defendants P.O. GONZALEZ and JOHN DOES #1-5.

73. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, including Defendants P.O. GONZALEZ and JOHN DOES #1-5.

74. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, including Defendants P.O. GONZALEZ and JOHN DOES #1-5, who Defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

75. As a result of the negligence of Defendant CITY and the acts of Defendants P.O. GONZALEZ and JOHN DOES #1-5, Plaintiff was caused to suffer personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation.

76. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION:**  
**MUNICIPAL LIABILITY**

77. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "76" of the complaint as if fully set forth herein.



78. Defendants arrested Plaintiff despite a lack of evidence against him, notwithstanding their knowledge that said arrest would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

79. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

80. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of CITY and the NYPD, all under the supervision of ranking officers of said department.

81. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were no limited to, making arrests and initiating and continuing criminal proceedings without evidence of criminal activity.

82. The foregoing customs, policies, usages, practices, procedures and rules of CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

83. Specifically, the customs, policies, usages, practices, procedures and rules of the CITY and NYPD included, but were no limited to, the following unconstitutional practices:

- a. Failing to properly train as to the protocols in conducting criminal investigations, particularly those involving nonviolent traffic violations;
- b. Failing to properly train officers as to how to treat citizens, particularly those who charged with common traffic violations;
- c. Failing to instruct and/or train officers in the use of force when affecting an arrest of a citizen for a common traffic violation ;

- d. Failing to instruct and/or train officers to intercede if a fellow officer is using excessive force on a citizen during the investigation of a common traffic violation;
- e. Failing to properly train and/or discipline officers who have previously displayed an aggressive or violent disposition;
- f. Failing to instruct and/or train officers to report a fellow officer who has used excessive force and/or previously displayed an aggressive or violent disposition.

84. That the CITY knew about the unlawful and improper predispositions of Defendants P.O. GONZALEZ and JOHN DOES #1-5; that nevertheless the CITY consciously disregarded the risk of harm to Plaintiff and other citizens in his position that was posed and/or created by said police officers.

85. That in so doing, the CITY exhibited a deliberate indifference to the health, safety and welfare of the Plaintiff.

86. That the CITY knew with a moral certainty that Defendants P.O. GONZALEZ and JOHN DOES #1-5, would need to interact with civilians during the investigation of criminal violations. That the CITY further knew with a moral certainty Defendants P.O. GONZALEZ and JOHN DOES #1-5 had previously displayed and demonstrated violent, aggressive and/or inappropriate demeanors that put the CITY on notice that said Defendants may act in an improper manner when dealing with civilians.

87. Nevertheless, the CITY was deliberately indifferent to the needs of those citizens, like the Plaintiff, and failed to properly train and/or supervise said officers; it was clear and foreseeable to the CITY that this failure to properly train police officers, like the individual defendants, would frequently cause the deprivation of a citizen's rights, and thus, the failure to

properly train demonstrates a deliberate indifference to the needs of the citizens, such as the Plaintiff.

88. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

89. Defendant CITY, as municipal policymaker in the training and supervision of Defendant police officers, pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force and freedom from deprivation of Liberty without Due Process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

**WHEREFORE**, Plaintiff respectfully requests judgment against the Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of this action.

DATED: New York, New York  
October 16 2017

Respectfully submitted,



Christopher D. Galiardo

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VERIFICATION

CHRISTOPHER GALIARDO, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affiant is the attorney of record for the plaintiff in the within action.

Affiant has read the foregoing SUMMONS and VERIFIED COMPLAINT and knows the contents thereof.

The same is true to affiant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affiant believes them to be true.

This verification is made by affiant and not by plaintiff because plaintiff resides outside the county wherein affiant maintains his office.

The grounds of affiant's belief as to all matters not stated upon affiant's own knowledge are as follows: investigations and information received by affiant in the course of his duties as attorney for the said plaintiff.

Dated: New York, New York  
October 16, 2017



CHRISTOPHER D. GALIARDO